fee motion. From a big-picture standpoint, the case has been pending for about 17 months. As a result, Plaintiff's counsel's firm only averaged around 2.36 hours a month (41.5 hours of attorney time claimed divided by 17 months). There is also no duplication of work given the single attorney working the case.

In the opposition, Defendant identifies nearly a dozen tasks that it contends were "clerical." While clerical staff could perform some of the tasks identified, e.g., drafting the summons, drafting the civil case cover sheet, etc., it would not be unreasonable for an attorney to draft those documents as well since they are filed with the Court, especially when, as is the case here, the attorney is already drafting the accompanying complaint. Other tasks highlighted by Defendant include some clerical-type work, but they are intertwined with higher-level work, e.g., organizing documents and the file, but also summarize and itemize their contents. Even the organization of the repair orders entails reviewing them and calculating how they should be organized for later use in the litigation. Overall, no reductions are warranted on this argument.

Defendant also contends that certain tasks billed are duplicate. However, revisiting documents to review them, such as for accuracy, before filing documents is not "duplicate" *per se* nor was it unreasonable for counsel to re-review documents to create a settlement calculation.

Overall, the time expended appears reasonable. Using the reduced rate, the loadstar amount would be $21,070 (calculated using 34.8 hours [the 40.1 hours claimed, minus the 5.3 hours billed at $200 per hour] multiplied by $575 per hour or $20,010, plus $1,060 [or the other 5.3 hours claimed at the $200 rate].)

As to costs: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc. § 1032, subd. (b).) Absent statutory authority, the Court has no discretion to deny costs to the prevailing party. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) Here, costs appear supported.

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16. *Avila v. California Premier Roofscapes, Inc., et al,* Case No. CIVSB2425309
Defendant Lennar's Motion for Summary Judgment or Summary Adjudication
7/30/26, 9:00 a.m., Dept. S-17

Tentative Rulings

<u>*As to Requests for Judicial Notice:*</u> The Court would **DENY** Lennar's request for judicial notice of the Complaint-in-Intervention as irrelevant and unnecessary.

<u>*As to Objections:*</u> The Court would **SUSTAIN** as to Lennar's evidentiary objections 1-6, 9, 20-27, 29-31, 33, and 36-27, but would **OVERRULE** the remainder. The Court would **OVERRULE** Plaintiff Avila's objection to Defendants Reply Separate Statement. Finally, the Court would **OVERRULE** Defendant Lennar's objection to Plaintiff's July 22, 2026, objection.

<u>*As to the Motion:*</u> The Court would **GRANT** the motion for summary judgment because under the *Privette* doctrine Defendant Lennar cannot be held liable for the injuries sustained by an employee of an independent contract, and Defendant did not retain control

Case Summary

This is a personal injury and premises liability case. In brief, on April 5, 2023, Plaintiff was at the Fairhaven construction project as an assembler for Sunland Scaffold, Inc. Plaintiff's pleadings asserts that Defendant Lennar Homes (Lennar) was the general contractor. (Compl., ¶11.) At approximately 2:00 p.m., while loading his truck, a roll of roofing paper being used by Defendant California Premier (Premier) was rolled off a second story roof and struck Plaintiff on the head. As such, on August 14, 2024, Plaintiff filed suit against all Defendants Premier Roofscapes, Inc. and Lennar alleging (1) negligence and (2) premise liability; dangerous condition. On July 18, 2025,LWP Claims Solutions filed a Complaint-in-Intervention as the at-issue workers' compensation carrier to allege parallel causes.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

Now, Defendant Lennar argues that it cannot be liable for the injury to Plaintiff on two grounds: (1) no direct duty is owed because of the *Privette* doctrine and (2) there is no vicarious liability for Premier because it was not Lennar's agent. However, Plaintiff states that he is not pursuing a vicarious liability theory against Lennar. Its liability is argued to arise from its retaining control over the project site. (See Sep. Statement Undisputed Facts (UF), 21.) Further, the Complaint never pleads that Lennar is liable vicariously. Rather, the Complaint alleges Lennar is liable because it owned, maintained, controlled, entrusted, managed, and operated the property (¶¶13, 18, 20). Thus, Defendant's second argument is not considered.

Presented Facts – Plaintiff alleges that he was injured on April 5, 2023, while working as an assembler for Sunland Scaffold at the Fairhaven project when a roll of roofing paper being used by Premier rolled off the roof of a residential structure and struck him. (UF, 1 [undisputed].) When the accident occurred, Plaintiff was working in the course-and-scope of his employment for Sunland. (UF, 2 [undisputed].) Specifically, he was dismantling scaffolding at ground level, which included gathering the scaffolding components and loading them in a crew truck. Yellow tape was placed on the house door where he was working for safety. (Plaintiff's Additional Facts (AF), 5.) Defendant disputes, clarifying the house where Avila was working was not the house where the roofer was working. The scaffolding removal and the tape were placed on the property adjacent to the structure undergoing roofing work by Cal Prem. (Avila Depo. at pp. 102:16-103:2.)

Lennar is the builder and general contractor on the Fairhaven project residential community. (UF,7 [undisputed]; AF, 1.) Lennar hired Premier to complete the roof installation. (UF, 8 [undisputed].) It hired United Production Framing, LLC (UPF) to complete the wood framing. (UF, 9 [undisputed].) UPF hired Sunland as a subcontractor to install and remove scaffolds at the project. (UF, 10 [undisputed]; AF, 4.) Premier, UPF, and Sunland are separate entities from Lennar. (UF, 13 [undisputed].)

Lennar relies on the expertise of its subcontractors, including Premier and Sunland, to perform their respective contractual obligations safely and efficiently. (UF, 11.) It had no control over how the work was performed by Premier, UPF, or Sunland. (UF, 12.) Plaintiff disputes these facts because Lennar retained the authority to schedule the work at the project; it held safety inspections and meetings; and it had the authority to compel safe work conditions and stop a subcontractor's work if it was engaging in unsafe practices.

Lennar performed a safety inspection of the project about 2.5 or 3 hours before the incident. No objects or roofing material were observed falling off the roof. (UF, 17.) Plaintiff disputes any contention the inspection was adequate. Plaintiff contends Lennar never inspected to ensure the adequacy of the roofer's falling-object obligations. Lennar imposed no protection for unsecured rolls that were sitting on a second story roof.

Application of the Privette *Doctrine* – By presumption, when a person hires an independent contractor, he delegates to the contractor the responsibility to perform the work safely. (*Sandoval v. Qualcomm Incorporated* (2021) 12 Cal.5th 256, 269.) Therefore, a "long-standing common law rule was that a hirer bore no liability for injuries caused by the negligence of the contractor." (*Ibid*.; *Privette v. Superior Court* (1993) 5 Cal.4th 689, 693.)

Under the above facts, Plaintiff was the employee of an independent contractor hired by UPF, a subcontractor hired by Lennar, to install scaffolding. Under the *Privette* doctrine, Lennar cannot be held liable for his injuries unless an exception exists. Plaintiff accepts that the *Privette* doctrine applies. However, Plaintiff argues the retained control exception applies.

An employee of an independent contractor may sue the hirer if he can show the hirer retained control, exercised that control, and affirmatively contributed to the employee's injuries. (*Hooker v. Dept. of Transportation* (2002) 27 Cal. 4th 198, 202, 213-214.) Retained control refers to the hirer having control or authority over the work entrusted to the independent contractor and its employees. (*Sandoval, supra,* 12 Cal.5th at p. 274.) To exercise control the hirer must have exerted influence over the work to the extent the independent contractor was not free to perform the work in the manner it sought fit. (*Id.* at p. 278.) Lastly, to affirmatively contribute to the injury means the exercise of the retained control by the hirer contributed to the injury that is not merely derivative of the independent contractor's contribution. (*Id.* at p. 277.)

Here, neither the roofing chain nor the framing or scaffold chain had any contractual relationship with, or authority over, the other. Each Master Trade Partner Agreement (Master Agreement) confines the subcontractor's authority to its own work. Each California Addendum to the Master Agreement confines the subcontractor to the responsibility for the means, methods, techniques, sequences, and procedures for its work. (AF, 6 [undisputed].)

Lennar, under the Master Agreement, retained site-wide safety authority. However, each subcontractor was to comply with all health and safety programs and rules. If Lennar determined that safety programs or rules were not being followed or implemented, it could stop the subcontractor's work, remedy the unsafe working condition, and assess a penalty. Thus, Lennar's onsite manager held the duty to ensure everyone was being safe. (AF, 7, 12, & 18.) It further retained the right to ensure each subcontractor's superintendent was satisfactory and one could not be changed without Lennar's approval. Also, Lennar could order the removal and replacement of one found unfit or unskilled. (AF, 8.) Furthermore, Lennar controlled the project schedule. It would give each trade its start date, and all trades were to work during their project schedule. (AF, 9.) Also, Lennar retained staging and delivery authority over the framing and scaffolding chain. No framing could be delivered to the job site without Lennar's consent. UPF could only store its material at approved locations. (AF, 10.)

By contrast, Premier trained its employees to stand rolls of roofing paper vertically on the roof, unsecured and with no equipment securing it. Its safety manager had no responsibility for prevention of falls or drops of material. He has used falling-object protection equipment in roofing work elsewhere. (AF, 20.) Defendant disputes this because Premier held the contractual duty to be responsible for workplace safety under the Master Agreement.

In construing these facts, they do not establish Lennar retained control over the manner and means of Premier's securing of equipment and supplies in relation its roofing work. Lennar schedules the work of the subcontractors at the project; engages in safety inspections; and holds the right to ensure safety compliance. These actions are not tantamount to, nor do they even imply, control over the manner and means that Premier employees did the work. More specifically, there is no control over who Premier employees stored, used, or staged roofing material. Even if Lennar had the right to stop work in relation to safety violations, no facts are offered that it actively engaged in that control, which then might have affirmatively contributed to the roofing material rolling off the roof.

Ultimately, the Master Agreement provides that the subcontractor shall "furnish all labor, equipment, supervision and all other things necessary to timely and properly perform the Work in accordance with the Work Agreement(s), PO(s) and Scheduling Notice(s) . . . ." (Def. Exh. 7 [¶2.1].) Furthermore, the subcontractor "shall maintain competent and sufficient supervision of employees on the Job Site during all times that the Subcontractor is performing its Work." (Def. Exh. 7 [¶7].) Finally, the Master Agreement states that the subcontractor "shall be **solely responsible** for ensuring that its Work and/or the delivery of Goods is performed in a safe manner." (Def. Exh. 7 [¶8.4].) Moreover, "[n]othing herein shall be deemed to be an exercise of control by Lennar of Subcontractor's safety obligations." (*Ibid.*) "Subcontractor shall take all reasonable and necessary safety precautions with regard to the Work and the delivery of Goods, shall coordinate its safety precautions with other subcontractors, sub-subcontractors, and suppliers, and shall comply with all safety requirements, laws, regulations, rules or ordinances of any authority (governmental or otherwise) responsible for the safety of persons or property." (Def. Exh. 7 [¶8.4].)

Under all facts and evidence, the safety obligation in performing one's work rested with the subcontractor, not Lennar. Nothing offered supports that Lennar retained such control as to negate the application of the *Privette* doctrine.

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